

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 2103195

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: NICHOLAUS CLARENCE
GARCIA

and

RESPONDENT: MICHELE WEIR GARCIA

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – VEXATIOUS LITIGANT
REQUEST 2) REQUEST FOR ORDER – VISITATION

RULING

Respondent/Mother Michele Weir has filed two Requests for Order (RFO). First, Mother filed a RFO on May 28, 2026, relating to custody and visitation of the parties' three minor children, Jaxson (FOB 8/3/2012), Tamzin (DOB 3/8/2015), and Bellamy (DOB 6/12/2017). Second, Mother has filed a Request that Petitioner/Father Be Declared a Vexatious Litigant under California Code of Civil Procedure section 391.7 and 391.1. As to this second RFO, Mother requests this Court impose a pre-filing order requiring that all proposed litigation be submitted to the Presiding Judge and that the Presiding Judge permit the filing only if it appears to have merit and is not intended for harassment or delay. Further Mother seeks an order for deposit of security of \$7,500 which would constitute a fund for reimbursement for continued abuses as well as serve to deter Father from his alleged on-going abuses of the judicial system. The Court addresses each of these RFOs below.

Request for Order regarding Visitation and Custody

Mother filed a request to modify visitation and custody orders and decrease Father's time with the children due to Father's failure to comply with current orders of this Court. Specifically, Mother seeks to suspend Father's alternating Thursday overnights until Father complies with the Findings and Order After Hearing of December 19, 2025 (FOAH). Mother identifies three areas of Father's noncompliance: (1) failure to move forward with co-parenting counseling, (2) failure to respond in a timely way to Our Family Wizard messages, and (3) failure to provide check-ins with the children as set out in the FOAH during Father's custodial time.

The parties were referred to Marin Family Court Services (FCS) for mediation, counseling and recommendations. Both parties were interviewed. FCS submitted its report dated July 3, 2026.

This is the fifth report prepared by FCS involving this family.

FCS expresses concern regarding the parents' continuing struggles to coparent effectively. The Court shares this concern. The parents were directed to engage in coparenting counseling in December of 2025. Father subsequently filed a motion for reconsideration relating to this aspect of the Court's order. Father's motion for reconsideration was denied March 10, 2026. Despite the passage of time, the parties have not made progress selecting a coparenting counselor or initiating coparenting counseling.

Further, the parties are having trouble with respect to the administration of medication for their daughters.

The FOAH provides a detailed framework for visitation. Despite this level of detail, the parties have had trouble adhering to certain directions/conditions. Specifically, as to the check-ins with the children and timeliness of responses on Our Family Wizard. The Court has considered the submissions of the parties and finds good cause and that it is the best interest of the children to adopt the recommendations of FCS as modified, as follows:

All prior orders not in conflict with the below shall remain in effect with the following modifications.

1. No changes to the timeshare as provided for in the FAOH filed 12/19/25.
2. Mother shall have sole legal custody for purposes of directing medical care for the children.
3. Father shall submit the names of 2-3 in network coparenting counselors who have experience working with high conflict families to the list of coparenting counselors suggested by Mother for the Court to make a final selection. Father shall submit the names to this Court within 15 calendar days of the entry of this Order.
4. Parents shall comply with orders to participate in coparenting counseling.
5. Parents are to comply with FOAH 4(d)(1) by agreeing to a set time when the one five-minute telephone or video call per day, per child is to occur. This shall be a default, reserved time. The parties may agree to move the time for their convenience.
6. Tamzin shall be tested for ADD. Parents shall cooperate with getting Tamzin tested for ADD.
7. Father shall ensure that the children receive any needed medications to treat their asthma and allergies during his custody time.
8. Neither parent shall release confidential FCS reports to anyone not expressly authorized by the court to view the reports.

The Court is directing the parties to appear to address a concern raised by Marin Family Court Services that unauthorized individuals have received FCS reports. FCS urges this Court to issue an order prohibiting such individuals from disseminating the reports and directing them to immediately delete the reports. FCS further recommends that Father shall contact all individuals to whom he released FCS reports to provide them with a copy of such a court order instructing recipients to delete all FCS reports they have received.

Parties are ordered to appear. A copy of a proposed order is attached to this tentative.

Request for Order that Father Be Declared a Vexatious Litigant

Mother has filed an RFO seeking orders from this Court that Father be declared a vexatious litigant. Her request is supported by two detailed declarations (from Mother and her counsel).

Father has opposed the request and filed a Memorandum of Points and Authorities that greatly exceeds the page limits imposed by the State Court Rules. Father also provided a Request for Judicial Notice. Mother has provided detailed evidentiary objections to Father's submissions and urges this Court to disregard all of Father's Memorandum which violates court rules.

Mother's objection to the Memorandum is overruled. The Court, however, advises Father that failure to comply with Court filing rules may be a basis for striking filings. Father is instructed to comply with page limits as well as the requirement that all submissions to the Court are to be double-spaced.

Mother has submitted reply papers filed with this Court on July 6, 2026, together with a supporting declaration seeking relief from the filing deadline requirements. In response, Father filed a seven and a half page single-spaced objection to the Court considering the reply papers.

As to Mother's *ex parte* application for late filing of the reply papers, the application is granted. The Court finds good cause based on review of the papers, including the Declaration of Kristine Cirby. Father's objections to Mother's reply papers are overruled.

Turning to the merits of the underlying motion, the Court offers the following analysis. Mother's Request for Order chronicles a procedural history that is deeply concerning to this Court.

Under California law, a "vexatious litigant" is defined by Civil Procedure Code (CPC) § 391(b) as a person who, acting in propria persona, repeatedly files meritless lawsuits, motions, or pleadings; initiates or prosecutes numerous litigations; relitigates issues previously decided against them; or has been declared vexatious in related actions. The statute specifically applies to family law proceedings (Fam. Code § 210) and allows courts to impose prefilings orders requiring the litigant to obtain court permission before filing new actions or motions, excluding discovery motions.

In evaluating a request that a party be declared a vexatious litigant, the court need not find a likelihood of success in future cases (or motions) to impose such an order. Rather, the court acts prospectively to prevent abuse of judicial resources. Such orders may include requiring security

for costs and may be subject to modification if there is a material change in circumstances (CPC §§ 391-391.8; *In re Marriage of Rifkin & Carty* (2015) 234 Cal.App.4th 1339).

The determination of whether a party is a “vexatious litigant” involves weighing factual evidence, considering the litigant's history of filings, and assessing the party’s reasonable probability of prevailing. California Courts apply their discretion guided by statutory standards and case law, recognizing that the purpose is to curb "persistent and obsessive" groundless litigation that burdens courts.

Self-represented litigants receive no special leniency and are subject to the same sanctions as represented parties.

California courts have applied these standards directly in dissolution and custody proceedings. In *In re Marriage of Rifkin & Carty*, a family court found a father to be a vexatious litigant under § 391(b)(3) based on his repeated filing of unmeritorious motions in propria persona, and imposed a prefiling order requiring him to obtain leave before filing new litigation in Los Angeles County Superior Court (*In re Marriage of Rifkin & Carty*, 234 Cal.App. 4th 1339 (2015).) Similarly, in *In re Marriage of Deal*, a husband was designated a vexatious litigant even though he had only been a respondent to his wife's dissolution petition and the appellant on appeal, confirming that the designation is not limited to parties who initiated the underlying family law action (*In re Marriage of Deal*, 45 Cal.App.5th 613 (2020).) Most recently, in *In re Marriage of Kouvabina & Veltman*, the Court of Appeal sua sponte issued an order to show cause and ultimately declared a wife a vexatious litigant based on nine prior litigations initiated pro se in connection with a dissolution of marriage, imposing a prefiling order under § 391.7. (*In re Marriage of Kouvabina & Veltman*, 115 Cal.App.5th 293 (2025).)

Here, Father’s behavior in this litigation has been problematic and resulted in Mother incurring substantial fees to address what, in many cases, may be considered routine matters. The Court is not prepared, however, *at this time*, to declare Father a vexatious litigant. Father has devoted substantial energy seeking to comply with the California Code of Civil Procedure, the Family Code, and this Court’s local rules. This effort to comply has not always been successful, as evidenced by Father’s opposition papers to this motion. Moreover, Father has taken positions that have been found to be without merit. But the Court does not find that Father’s litigation tactics have been taken with the intent to cause delay, abuse the process, or inflict injury. Based on the extensive record before this Court, the Court does not find that Father’s tactics taken for the purpose of delay or overtly frivolous.

It is also clear to this Court that Father is imposing a substantial burden on Mother in terms of addressing the myriad motions, objections, and appellate proceedings. To date, Father’s repeated writ filings have been unsuccessful. The Court does not address the merits of these proceedings. But the Court cannot ignore the substantial, cumulative financial burden this has put on Mother. Father is encouraged to seek guidance from the Legal Self Help Center as he continues through this legal proceeding.

Counsel for Mother to prepare the Findings and Order After Hearing.

Separate attached Order (with Caption)

NAME OF ORDER: ORDER PROHIBITING DISSEMINATION AND MANDATING DELETION OF CONFIDENTIAL REPORTS

TO PERSONS WHO HAVE RECEIVED CONFIDENTIAL MARIN FAMILY COURT SERVICES CUSTODY REPORTS AND RECOMMENDATIONS

It has come to the Court's attention that confidential Marin Family Court Services Custody Reports and Recommendations have been disclosed. Such reports are dated 10/15/21, 5/31/22, 6/3/23, and 6/26/25 involving the family in the above-entitled case.

Any individuals who received, but were not authorized to receive, Marin Family Court Services reports in this case are prohibited from disseminating the reports and shall immediately delete such reports.

[Signature Judge James Schurz]

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0001759

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: SILVIO SANTOS
VICENTE

and

RESPONDENT: MARIA MAZARIEGOS
CIFUENTES

NATURE OF PROCEEDINGS: REQUEST FOR ORDER - SPOUSAL SUPPORT

RULING

This matter is before the Court on Respondent/Wife's May 28, 2026, Request for Order (RFO) requesting pendente lite spousal support, property control, \$10,000 in attorney fees, and exclusive use of the marital home in Novato, CA. The parties have one child, Damian, (DOB 5/13/22).

Pendente Lite Spousal support

Wife's May 28, 2026, Income and Expense Declaration (IED) reported \$1,932 in income and \$2,024 in expenses.

Husband's June 24, 2026, IED reported \$6,971 in income from wages last month and \$9,784 in expenses, \$1,549 in work-related childcare expenses and \$339 for the child's health care expenses not covered by insurance. Wife alleges that Husband is receiving unreported rental income.

On July 1, 2026, Wife submitted calculations for spousal support. However, Wife's calculations uses income from a job that Husband hasn't worked at since April of 2026. Additionally, neither of the submitted calculations factor in Husband's childcare expenses or uninsured medical expenses for their son. The calculations also account for unreported rental income for Husband. Wife doesn't provide any proof of the rental income either.

The following monthly inputs were used in running an XSpouse calculation.

Wife:

1. \$2,285 average income, including overtime, from her four provided paystubs.

Husband:

1. \$6,131 average income, including overtime, from his four provided paystubs.